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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF NATIONAL HARMONY

(National Harmony Division)

NOTIFICATION

Islamabad, the 1st March, 2012

S. R. O. 222(I)/2012.— In exercise of powers conferred by section-7 of the Protection of Communal Properties of Minorities, 2002 (V of 2002), the Federal Government is pleased to make the following rules, namely:—

1. **Short title and commencement.**—(1) These rules may be called the “Protection of Communal Properties of Minorities Rules, 2012”:

(2) They shall come into force at once.

2. **Permission for sale or transfer of minority communities properties.**— (1) Any person intending to sell, purchase, transfer or gift any property shall apply to the Federal Government, for the grant of NOC, giving all relevant

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details of particulars and information, in the form specified in these Rules. Such person shall also provide any other information or documents as may be required by the Federal Government for processing of his application:

Provided that purchase, sale, transfer or gift of such property shall not be used for fund raising for any project.

(2) The sale, purchase, transfer or gift of such communal property shall be restricted only for collective use of community welfare.

Explanation: For the purpose of this rule, the term "transfer" includes transfer by way of lease.

(3) The Federal Government on receipt of an application under sub-rule (1), shall verify the information and documents of the property through the concerned DCO and shall invite objections through Press.

(4) The Federal Government after considering the application and objections, if any, may give NOC to the applicant on the recommendations of the Commission.

3. **Eviction from un-authorized occupation.**— Where any person in possession of the Property of a Church or Communal authority after retirement or removal from service of such Church or Communal authority:—

- (a) retains the possession of such property;
- (b) refuses to vacate such property; or
- (c) uses such property for any purpose for which he is not authorized to use,

shall be liable to eviction in accordance with the law for the time being in force.

4. **Rescission.**— All previous notifications issued in this behalf are hereby rescinded.

[F. No. 11(2)/2010-M.]

IMRAN RASHID,
Section Officer (Minorities).

Form [See Rule 3(1)]**APPLICATION FORM FOR GRANT OF NOC**

1. Location of Property -----
2. Khasra Number of Property
as per revenue record -----
3. Nature of Property -----
4. Total Area of Property -----
5. Current ownership of Property
(as per documentary evidence) -----
6. Current market Price
of the Property -----
8. For what purpose, property is
currently being used -----
9. Name of occupant -----
10. Revenue being generated
(currently) from the property -----
11. Reason/Objective for sale out the
property (Individual / Communal) -----
12. Detailed Benefits from sale of
property to the community -----
13. List of members of Executive
Committee of Property -----
14. Complete Postal Address / Phone -----

Documents to be attached:—

- i. Attested copies of registration/fard/lease deed of the property.
- ii. Approval of the Executive Committee / competent authority to sale out the property.
- iii. Affidavit on Stamp Paper from the owner that there is no loan pending against the communal property and is free from all encumbrances.
- iv. Affidavit on Stamp Paper from the owner that there is no litigation or Court case pending against the above said communal property in any court of law.

Date:

Name :

Signature: